

		hearing continued for the production of other evidence, oral or documentary.” (Code Civ. Proc., § 703.580(c).) The judgment debtor bears the burden of proof at a hearing on a claim of exemption. (Code Civ. Proc., § 703.580(b).) However, the exemption statutes are liberally construed in favor of the claimant. (<i>Kono v. Meeker</i> (2011) 196 Cal.App.4th 81, 86.) The Court initially continued the hearing because the Sherriff’s packet stated that a claim of exemption was enclosed, and no such claim was included with the packet. (ROA 30.) On 5/22/26, Judgment Creditor filed a declaration, noting that Judgment Debtor never filed a claim of exemption. (ROA 43.) Thus, pursuant to Code Civ. Proc., § 704.080(b)(2), only \$3,500 in the account is exempt. This leaves an excess of \$69,338.90. Because Judgment Debtor did not file a claim of exemption or anything else in this matter, the Court finds that he fails to meet his burden. (Code Civ. Proc., § 703.580, subd. (b).) Accordingly, the Court therefore finds that except for the statutory \$3,500 in Judgment Debtor’s account, the funds held by Judgment Creditor in the amount of \$69,338.90 are not exempt. Judgment Creditor shall give notice.
6.	2024-1411554 Abdullah vs. Figueroa	Cross-Defendants Jose Figueroa and Ayoub Benwali’s (collectively, “Cross-Complainants”) Motion for Terminating Sanctions Against Plaintiff/Cross-Defendant Essam Abdullah (“Abdullah”), and for Monetary Sanctions, is granted in part and denied in part. The request for terminating sanctions is denied. The request for monetary sanctions is granted. <u>Procedural Issues</u> Cross-Complainants filed a 190-page motion, including 32 exhibits, and failed to include any electronic bookmarks. (Cal. R. Ct. Rule 3.1110(f)(4).) Abdullah’s 65-page opposition includes <i>some</i> bookmarks, but he also failed to substantially comply with Rule 3.1110(f)(4). The parties are admonished that, for any future filings, failure to present their papers in compliance with the Rules may result in the Court’s refusal to consider the non-compliant papers. <u>Merits</u> Cross-Complainants move for terminating sanctions, striking Abdullah’s complaint, striking Abdullah’s answer to their cross-complaint, and for \$18,970.10 in monetary sanctions. (ROA 141.)

CCP section 2023.030 outlines the various sanctions that may be imposed “against anyone engaging in conduct that is a misuse of the discovery process,” including: monetary sanctions, issue sanctions, evidence sanctions, a terminating sanction, and a contempt sanction. These sanctions may be imposed by the court, “after notice to any affected party, person, or attorney, and after opportunity for hearing.” (Code Civ. Proc., § 2023.030.) Among other acts, disobeying “a court order to provide discovery” and “failing to respond or to submit to an authorized method of discovery,” are misuses of the discovery process and conduct that is subject to sanctions. (Code Civ. Proc. § 2023.010, subd. (d), (g).) “Once a party or witness has been *ordered* to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to make discovery.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].)

Many courts have found that terminating sanctions should be imposed only if the court has found a willful failure to comply. (See *Valencia v. Mendoza* (2024) 103 Cal.App.5th 427, 447; *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 496.) The trial court has “broad discretion in selecting the appropriate penalty,” and its determination should be upheld “absent an abuse of discretion.” (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604.) Nevertheless, terminating sanctions “are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (*R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 496.) The burden of showing sanctions are not justified (i.e., that the responding party did not willfully fail to perform) lies with the responding party. (See *Corns v. Miller* (1986) 181 Cal.App.3d 195, 201.)

Here, Cross-Complainants have demonstrated that Abdullah failed to comply with the court’s 4/22/26 discovery order, which commanded Abdullah’s deposition to proceed “by no later than May 14, 2026.” (ROA 135.) Cross-Complainants’ (sixth amended) notice of deposition gives notice of taking Abdullah’s deposition, in-person, at counsel’s office. (Knafo Decl., Exh. 19.) Abdullah did not serve any objections to the notice. (Knafo Decl. at ¶ 28.) Immediately following the IDC on 4/22/26, Abdullah’s counsel requested that his deposition be taken via Zoom, but Cross-Complainants’ counsel did not agree to the request. Abdullah’s counsel requested Cross-Complainants to reconsider the request, on 4/23/26, but, against, Cross-Complainants’ counsel rejected the request. (Knafo Decl. at ¶¶ 30-31, Exhs. 20-21.) Thereafter, Abdullah’s counsel requested Cross-Complainants’ counsel travel to his office for Abdullah’s deposition, but Cross-Complainants’ counsel declined to do so. (Knafo Decl. at ¶¶ 11-13, 32, Exhs. 7, 22.) Nevertheless, on the day

of the deposition, Abdullah attempted to appear via Zoom and insist that he be allowed to proceed remotely. (Knafo Decl. at ¶ 34, Exh. 24.) At that time, Abdullah's counsel presented (for the first time) an undated "medical record" from a nurse practitioner who recommended that his deposition be taken remotely. (Knafo Decl. at ¶¶ 35, 37, Exhs. 25-26.) Abdullah also testified that he gets "severe anxiety when he leaves a ten-mile radius." (Knafo Decl. at ¶ 36.)

In his opposition, Abdullah claims he "did in fact appear for his deposition," and, as such, "there is no violation of a court order and no grounds for terminating sanctions." (Opp'n at p. 2.) The Court disagrees. Nothing in the 4/22/26 discovery order indicates that Abdullah was allowed to deviate from the parameters of the noticed deposition, and unilaterally decide to appear via Zoom. Under the Code, "Any party served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) *waives any error or irregularity* unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled." (Code Civ. Proc., § 2025.410, subd. (a) [emphasis added].) Further, Rule 3.1010 provides, "any party, *other than the deponent*, or attorney of record may appear and participate in an oral deposition by telephone, videoconference, or other remote electronic means"; however, "a deponent *must* appear as required by statute or as agreed to by the parties and deponent." (Cal. R. Ct., Rule 3.1010(b), (c) [emphasis added].)

Abdullah does not dispute Cross-Complainants' representation that he did not serve any objections to the subject deposition notice. Abdullah did not comply with the deposition notice, or the discovery order, by unilaterally deciding that he would appear remotely (via Zoom), after he failed to object to the deposition notice or file a motion (*prior* to the deposition) for an order allowing him to attend it remotely.

Yet, despite this violation, the Court agrees with Abdullah's second contention, that "extreme terminating sanctions" are not warranted. (See Opp'n at p. 4.) Aside from failing to appear in-person at his duly-noticed deposition, there is not enough evidence to find Abdullah is unwilling to provide discovery or to participate in this action. Thus, the request for terminating sanctions is denied.

On the other hand, because Abdullah acknowledges he was already expressly warned by Judge De La Cruz about the possibility of "severe monetary sanctions," the Court finds the requested monetary sanctions are warranted. The supporting declaration from Cross-Complainants' counsel, and exhibits attached thereto, show that Cross-Complainants incurred \$5,720.10 in costs, and \$13,250.00 in attorney's fees, as a result of Abdullah's failure to

		comply with valid deposition notices, including the subject notice that resulted in the discovery order. (Knafo Decl. at ¶¶ 41-46, Exhs. 29-32.) Abdullah has not opposed the reasonableness of the monetary sanctions sought or otherwise challenged that Cross-Complainants incurred these fees and costs as a result of his failure to comply with valid deposition notices. Accordingly, Cross-Complainants are awarded \$18,970.10, in reasonable attorneys' fees and costs, against Abdullah, only. (Code Civ. Proc., § 2023.030, subd. (a).) The sanctions are payable within 90 days of the notice of ruling to Ghozland Law Firm. Cross-Complainants are ordered to give notice of the ruling.
7.	2026-1549234 Roe vs. Doe 1, Religious School	Plaintiff John VJP Roe ("Plaintiff") seeks an order sealing Plaintiff's Certificates of Merit and allowing Plaintiff to proceed under a fictitious name. Plaintiff's complaint alleges he was sexually assaulted as a minor. Every plaintiff 40 years of age or older at the time the action is filed is required to file certificates of merit. (Code Civ. Proc., § 340.1, subd. (e).) "The court shall review the application and the certificate of corroborative fact in camera and, based solely on the certificate and any reasonable inferences to be drawn from the certificate, shall, if one or more facts corroborative of one or more of the charging allegations against a defendant has been shown, order that the complaint may be amended to substitute the name of the defendant or defendants." (Code Civ. Proc., § 340.1, subd. (m).) "The court shall keep under seal and confidential from the public and all parties to the litigation, other than the plaintiff, any and all certificates of corroborative fact filed pursuant to subdivision (l)." (Code Civ. Proc., § 340.1, subd. (n).) Plaintiff's motion to seal the Certificates is granted. Due to the sensitive nature of the allegations of this case and Plaintiff's right to privacy, Plaintiff's request allowing him to proceed under a pseudonym is granted. (<i>See, Doe v. Lincoln Unified School Dist.</i> (2010) 188 Cal.App.4th 758, 766.) Plaintiff shall give notice.
8.	2026-1550175 Taylor vs. Hyundai Motor America	Defendant Hyundai Motor America's motion to compel arbitration of Plaintiff James Taylor's claims is denied. Defendant's request for judicial notice is denied as it is unnecessary to ask the court to take judicial notice of materials previously filed in this case. "[A]ll that is necessary is to call the court's attention to